

13. S-CV-0053949 McGettigan, Deborah v. John Mourier Construction

Moving Party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Cross-Defendants John Mourier Construction, Inc. and SV 218, LLC's Motion for Judgment on the Pleadings as to the Cross-Complaint filed by Pacific Coast Supply, LLC and AlCal Specialty Contracting, Inc.

Cross-defendants John Mourier Construction, Inc. and SV 218, LLC move for judgment on the pleadings as to the cross-complaint filed by Pacific Coast Supply, LLC and AlCal Specialty Contracting, Inc. Cross-complainants oppose the motion and request to file an amended cross-complaint.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Cross-defendants brings the motion on the basis the cross-complaint fails to state a cause of action because it is ambiguous and unintelligible as defined in California Civil Procedure § 430.10(f). (Mot. J. Pleadings at 4.)

In response, cross-complainants concede their "hastily drafted" cross-complaint needs amending and requests leave under C.C.P. 473(a)(1) to file an amended cross-complaint.

Accordingly, cross-defendants' motion is granted, with leave for cross-complainants to amend the cross-complaint. (Code Civ. Proc., §§ 473, (a)(1), 576.) Cross-complainants shall file and serve an amended cross-complaint **on or before May 8, 2026**.

14. S-CV-0054573 Casey, Michael v. Casey, Donna Sue Eggleston

Motion for Attorneys' Fees

Defendant moves for an award of attorneys' fees and costs in the amount of \$26,323.21 (fees of \$19,564.56 for litigating a special motion to strike and costs of \$143.83 for filing that special motion to strike; and fees of \$6,545 for filing this motion and costs of \$69.82

for filing this motion) pursuant to Code of Civil Procedure section 425.16(c)(1). Plaintiff opposes the motion.

Defendant's request for judicial notice is granted.

Before examining the legal issues, a brief overview of the procedural history of this case is necessary. Plaintiff filed the complaint in this action on February 14, 2025 alleging claims for (1) sexual battery, (2) intentional infliction of emotional distress, (3) intentional tort for domestic violence, and (4) slander per se. Defendant demurred to the complaint and filed a special motion to strike, commonly referred to as an anti-SLAPP motion pursuant to Code of Civil Procedure section 425.16. By written ruling on August 15, 2025, the court granted the anti-SLAPP motion and ordered stricken paragraphs 7 to 11, 16 to 17, 20, and 28 to 33 and the fourth cause of action for slander per se. In the same written ruling, the court sustained the demurrer to the second and third causes of action.

"[A] prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc., § 425.16, subd. (c)(1).) As defendant prevailed on her special motion to strike, she is entitled to recover reasonable attorney's fees and costs.

The court must address whether the \$26,323.21 in attorneys' fees and costs are reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, *supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel Landon D. Bailey and the exhibits attached thereto. Defense counsel charges an hourly rate of \$425 for himself and \$295 per hour for contract counsel Mony Chim. The court finds both of these hourly rates reasonable.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declaration of counsel Bailey and the invoices attached thereto as Exhibit A, as well as the supplemental declaration of counsel Bailey and the invoices attached thereto as Exhibit A. As to the initial declaration, the invoices span from April 2025 to August 2025 and include billing for both the special motion to strike (for which fees are recoverable) and the demurrer (for which fees are not recoverable). Defendant acknowledges this and endeavors to apportion the recoverable fees from the non-recoverable fees. (Bailey Decl., pp. 3:26–9:8.) Even accounting for defendant's recommended apportionment, the court observes instances where defendant has insufficiently explained the work performed, instances where the work appears to be duplicative or unnecessary, and instances where the work described appears to be for the general defense litigation rather than specific to the anti-SLAPP motion. In light of these

observations, a reduction of hours is appropriate and the court approves a total of 41.1 hours. The court awards defendant's attorneys' fees as follows:

- 38.5 hours at an hourly rate of \$425 (counsel Bailey)
- 2.6 hours at an hourly rate of \$295 (counsel Chim)

As to costs, defendant seeks costs of \$143.83 for the litigation of the special motion to strike and an additional \$69.82 for costs for this motion. A careful review of the invoices provided as Exhibit A to the Bailey declaration support costs of \$128.55 for the initial motion. A careful review of the invoices provided as Exhibit A to the supplemental Bailey declaration support costs of \$69.82 for costs for this motion. The court approves costs in the amount of \$213.65.

Based on the foregoing, the motion is granted in part. Defendant is awarded attorneys' fees of \$17,129.50 and costs in the amount of \$213.65 for a total of \$17,343.15.

Motion to Consolidate

The motion to consolidate is dropped from the calendar as no moving papers were filed with the court.

15. S-CV-0056109 Bradley, Jerel v. Union Pacific Railroad Co.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to First Amended Complaint

Defendants demur to the seventh cause of action in plaintiff's first amended complaint ("FAC") on the grounds that it fails to state a valid cause of action. (Code Civ. Proc., § 430.10 (e).) Plaintiff opposes the demurrer. A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Plaintiff's seventh cause of action alleges defamation. The elements of defamation are: (1) a publication, (2) that is false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or cause special damage. (*Bishop v. The Bishop's School* (2022) 86 Cal.App.5th 893, 909, 910.) Here, a careful review of the FAC reveals it sufficiently alleges all elements to support plaintiff's claim for defamation, including publication. (*See Kelly v. General Telephone Co.* (1982) 136 Cal.App.3d 278, 284; *Agarwal v. Johnson* (1979) 25 Cal.3d 932, 944.) Under Civil Code section 46(3), false statements